

25STLC00559 25STLC00559

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-09

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Case Number: 25STLC00559 Hearing Date: July 9, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Infinity Insurance Company's Motion to Continue Trial Date and All Related Cut-Off Dates is denied.

Trial scheduled for 07/23/2026 at 8:30 am in Department 26 at the Spring Street Courthouse is vacated.

Order to Show Cause Re: Entry of Default is scheduled for 07/23/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

On January 23, 2025, Plaintiff Infinity Insurance Company ("Plaintiff") filed this action for automobile subrogation against Defendant Transdev Services ("Defendant"). Plaintiff filed Proof of Personal Service on April 28, 2026.

On May 27, 2026, Plaintiff filed the instant Motion to Continue Trial Date and All Related Cut-Off Dates. Plaintiff served Defendant with the Motion by first-class mail on the same day. No opposition has been filed to date.

Discussion

Plaintiff moves for a trial continuance to January 2027 or later, pursuant to Cal. Rules of Court rule 3.1332, which provides "[a]lthough continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The Court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. Rules of Court, Rule 3.1332, subd. (c).) Grounds for a continuance include the unavailability of trial counsel because of death, illness, or other excusable circumstances. (Cal. Rules of Court, Rule 3.1332, subd. (c)(3).)

The court may look to the following factors in determining whether a trial continuance is warranted: (1) proximity of the trial date; (2) whether there was any previous continuance of trial due to any party; (3) the length of the continuance requested; (4) the availability of alternative means to address the problem that gave rise to the motion; (5) the prejudice that parties or witnesses will suffer as a result of the continuance; and (6) whether trial counsel is engaged in another trial. (See generally, Cal. Rules of Court, Rule 3.1332, subd. (d)(1)-(11).) Additional factors for the court to consider include: a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; whether all parties have stipulated to a continuance; and any other fact or circumstance relevant to the fair determination of the motion or application. (Cal. Rules of Court, Rule 3.1332, subds. (c), (d).)

Plaintiff argues that good cause exists for a continuance of the trial date, which is currently set for July 23, 2026, based on new counsel taking over the case at the end of April 2026. (Motion, Lee Decl., ¶4.) The Court does not find good cause to continue the trial date given that Defendant was served with the Summons and Complaint on April 28, 2026 and still has not filed a responsive pleading. (Id. at ¶¶5-6; Proof of Personal Service, filed 04/28/26, ¶15.) The posture of the case is no longer one proceeding to trial, but to default. Accordingly, the Court denies the Motion, vacates the trial date, and sets an Order to Show Cause regarding entry of default.

Conclusion

Plaintiff Infinity Insurance Company's Motion to Continue Trial Date and All Related Cut-Off Dates is denied.

Trial scheduled for 07/23/2026 at 8:30 am in Department 26 at the Spring Street Courthouse is vacated.

Order to Show Cause Re: Entry of Default is scheduled for 07/23/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Moving party to give notice.